PAUL TURNER
and
HERON INVESTMENTS (PVT) LIMITED
and
LWH (PRIVATE) LIMITED
and
REGISTRAR OF DEEDS

HIGH COURT OF ZIMBABWE
MUNANGATI-MANONGWA J
HARARE, 26 June 2026

Chamber Application

T. Nyamasoka, for the 1st applicant
D Tivadar, for the 2nd applicant
T Sibanda, for the 1st respondent with P. Nyeperayi and N.Tembo
No appearance for 2nd respondent

MUNANGATI-MANONGWA J: This is a chamber application by the first and second applicants for leave to file a supplementary affidavit in the main proceedings under case number R-HCH 5524/23. The application is opposed by the first respondent. The second respondent has not actively participated in these proceedings. The legal practitioners for the parties agreed that the matter be decided on papers filed of record.

The matter falls for determination under Rule 59(12) of the High Court Rules, 2021, which provides that after an answering affidavit has been filed, no further affidavits may be filed without the leave of the court or a judge. The issue before the court is therefore a narrow one. It is not whether the applicants will ultimately succeed in the main application. It is whether they should be granted leave to place before the court a further affidavit responding to allegations contained in a supplementary affidavit filed by the first respondent in the main proceedings.

Background Facts

The essential facts are largely common cause. The first respondent instituted the main application seeking, inter alia, relief relating to the affairs of the second applicant, including a forensic audit and the removal of the first applicant as a director. At a case management meeting held on 29 September 2025, issues arose concerning certain documents which the

first respondent wished to have placed before the court. Directions were issued requiring the applicants to upload and place the requested documents on the record through supplementary affidavits. The applicants complied. The first respondent was afforded an opportunity to file a supplementary affidavit in response to those documents. The first respondent subsequently filed such supplementary affidavit on 3 November 2025. It is this particular affidavit which has caused this application to be instituted. The applicants contend that the supplementary affidavit introduced new allegations and new factual issues not contained in the founding papers. The applicants state that they indicated as early as 5 November 2025 their intention to seek leave to respond to those allegations.

The hearing which followed dealt exclusively with preliminary points. Judgment dismissing those preliminary points was delivered on 30 December 2025. This was then followed by the present application.

Issues for Determination

The issues falling for determination are:

1. Whether the preliminary objections raised by the first respondent are well founded.
2. If not, whether the applicants have established a proper basis for leave to file a supplementary affidavit.

The governing rule is Rule 59(12) of the High Court Rules, 2021. The principles applicable to applications of this nature are settled. In *United Refineries Ltd* v *Mining Industry Pension Fund SC* 63/14, the Supreme Court emphasized that the admission of a supplementary affidavit is a matter falling within the court's judicial discretion and that such discretion must be exercised in a manner that promotes fairness and justice and enables disputes to be determined on all relevant facts.

The following considerations were identified as pertinent:

i. a satisfactory explanation for the failure to place the information before the court earlier;
ii. absence of *mala fides*;
iii. absence of irremediable prejudice to the opposing party.

The same approach is evident in *Mining Industry Pension Fund v United Refineries Ltd HH 313/12 and Anueyiangu v Chief Immigration Officer & Ors SC 15/13*. It is however important to note that the overriding consideration is whether the interests of justice require that the proposed material be admitted.

In opposing the application, the first respondent raised the following objections:

Alleged Defective Form

The first respondent contends that the application fails to comply with Form 25 because it allegedly does not contain a sufficiently clear and concise summary of the grounds upon which the application is founded. I am unable to identify with that allegation. The cover page of the chamber application clearly states that the applicants seek leave to file a supplementary affidavit in order to respond to inaccurate and misleading allegations contained in the supplementary affidavit filed by the first respondent. The purpose of a notice of motion is to inform both the respondent and the court of the nature of the relief sought and the basis upon which it is sought. It is clear that the first respondent plainly understood the complaint. Its opposing papers deal extensively with the merits of the application and demonstrate full appreciation of the case it was called upon to meet. The alleged defect is therefore is rather speculative than real. Even if there were some technical deficiency, substantial compliance with the Rules has been demonstrated. Further, r7 allows a judge to condone a departure from the any provisions of the rules where he or she is satisfied that the departure is required in the interest of justice.

This point *in limine* lacks merit and is dismissed.

Absence of a Draft Supplementary Affidavit

The first respondent argues that the application is inchoate because the proposed supplementary affidavit has not been attached. Indeed, attaching the proposed affidavit is ordinarily the preferable practice. Doing so assists the court in assessing relevance, necessity and prejudice. However, the question before the court is whether the omission is fatal. Whilst it is preferable to have sight of the proposed affidavit, I do not believe that the omission is fatal given that the rules do not expressly require annexure of the proposed affidavit. Of note is the fact that, the founding affidavit sets out in considerable detail the matters which the applicants seek to address. Paragraphs 19 to 40 of the founding affidavit identify the allegations complained of and the nature of the response proposed. The court is therefore not left in a state of conjecture.

Given the foregoing facts, the purpose behind the requirement has substantially been fulfilled. The interests of justice would not be served by elevating form above substance. Accordingly, this objection has no merit and is dismissed

Wrong Procedure

The first respondent contends that the applicants ought to have filed an answering affidavit earlier and are now improperly seeking leave to file a supplementary affidavit. This argument cannot be sustained. The first respondent itself filed a supplementary affidavit after pleadings had closed. Once such affidavit was admitted onto the record, procedural fairness entitled the applicants to seek leave to answer any new matters raised therein. Indeed, the Supreme Court in *Anueyiangu v Chief Immigration Officer &* Ors expressly contemplated the filing of further affidavits in such circumstances with leave of the court. In fact, r59(12) exists precisely to regulate such situations. The applicants have employed the correct procedure. In that regard the objection is dismissed.

Alleged Delay in bringing the application

The first respondent argues that the application should fail because it was brought too late. The chronology does not support this contention. The applicants indicated their intention to seek leave shortly after the supplementary affidavit was filed. The matter then proceeded on preliminary issues only. Certainly, had those preliminary objections succeeded, the need for a supplementary affidavit would have disappeared. I find that the explanation advanced by the applicants is reasonable and plausible. It cannot therefore be concluded that the delay was deliberate, unreasonable or indicative of bad faith. This point has no merit and ought to fail.

Lack of Authority

The first respondent challenges the authority of the applicants to institute the present application. It is clear that the first applicant litigates in his personal capacity and requires no corporate resolution. As regards the first applicant, the argument is thus misconceived. As regards the second applicant, authority has been affirmed through the affidavit of Mr Black. In any event a board resolution has been produced. The authorities relied upon by the applicants, including *Dube v Premier Services Medical Aid Society SC 73/19, Steelmakers Zimbabwe (Pvt) Ltd* v *Mandiveyi* HH 479/15, and *African Banking Corporation of Zimbabwe*

Ltd t/a BancABC v *PWC Motors (Pvt) Ltd* HH 123/13, establish that the absence of an initial resolution is not necessarily fatal and that any defect may be cured. As the matter stands, no evidence has been presented showing that the second applicant does not authorize these proceedings. This objection is dismissed

Incorrect Rule Cited

The first respondent argues that the application is fatally defective because it purportedly cites Rule 59(2) rather than Rule 59(12). Even assuming that such reference appears in one part of the papers, the substance of the application leaves no room for doubt. The relief sought is leave to file a supplementary affidavit after pleadings have closed. That relief is governed by Rule 59(12). Courts have consistently held that incorrect citation of a rule does not necessarily invalidate proceedings where the substance of the relief is clear and no prejudice is occasioned. This objection is dismissed.

Accordingly, this matter will proceed to be decided on merits.

Merits of the Application:

The first respondent was permitted to file a supplementary affidavit in the main proceedings. The applicants contend that the affidavit introduced allegations relating to documents, company records, tax certificates, minutes, elections and other matters not previously pleaded. Whether those allegations ultimately prove to be correct is not presently before the court. What matters is that the allegations form part of the material presently before the court.

It is apparent that the applicants seek an opportunity to respond, yet first respondent opposes that request. In my view, the opposition cannot be reconciled with the principles of procedural fairness. The *audi alteram partem* principle remains a foundational component of our law.

It is common cause that allegations have been placed before the court which allegations may potentially influence the court's determination of the dispute, in that regard fairness generally requires that the opposing party be afforded an opportunity to answer them. The first respondent has not demonstrated any prejudice incapable of remedy. Should it become necessary, it may itself be afforded an opportunity to file a consequential affidavit. The only prejudice incidental thereto is delay. While delay is a legitimate consideration, it does not outweigh the need for a fair determination on a complete factual record. Overall, the applicants have furnished a reasonable explanation for the timing of the application. No

persuasive evidence of *mala fides* has been established. I have no doubt that the proposed response relates directly to issues introduced by the first respondent's supplementary affidavit and does not seek to alter fundamentally the nature of the dispute.

In that regard, the interests of justice therefore favour granting leave.

Disposition

The applicants have succeeded in their quest for the relief sought and are entitled to their costs. The first respondent sought to resist the application principally through technical objections, all of which have failed. It is imperative that Mathonsi J (as he then was)'s sentiments be brought up in this instance. In *Telecel Zimbabwe (Pvt) Ltd vs Postal and Telecommunications Regulatory Authority of Zimbabwe (POTRAZ) and Minister of Information, Technology, Postal and Courier Services N.O. & Ors* HH446/15 the court stated;

> "The time has come to discourage such waste of court time by the making of endless points *in limine* by litigants afraid of the merits of the matter or legal practitioners who have no confidence in their client's defence viz-a-viz the substance of the dispute, in the hope that by chance the court may find in their favour.
>
> If an opposition has no merit it should not be made at all.
>
> As points *in limine* are usually raised on points of law and procedure, they are the product of the ingenuity of legal practitioners.
>
> In future, it may be necessary to rein in the legal practitioners who abuse the court in that way, by ordering them to pay costs *de bonis propriis*."

Of all the six (6) objections raised none of them had the ability to dispose of the matter or was so material as to prove fatal to the application at hand. The objections create a suspicion that they were raised in order to delay the determination of the main matter and it is hard to believe that they were not *mala fide*. Had it not been that I had to decide the matter on papers it would have been imperative for me to enquire from the first respondent's legal practitioner why he should not pay costs *de bonis propriis* given that the objections being legal in nature are a product of his. This however serves as a serious warning to the said legal practitioner to think through objections before wasting the court's time in interrogating each objection which in essence does not dispose the matter. It is however fair in the circumstances to give that legal practitioner the benefit of doubt as regards the course of action he adopted in the absence of any submissions from him. However given the nature of

opposition fielded, it is in my view necessary that costs be awarded on a higher scale to discourage legal practitioners and their clients from fielding meritless defences.

Accordingly, it is ordered that:

1. The application for leave to file a supplementary affidavit is granted.
2. The applicants shall file and serve their supplementary affidavit in the main proceedings under case number R-HCH 5524/23 within 10 (ten) days of the date of this judgment.
3. The first respondent shall be entitled, if so advised, to file a consequential affidavit limited to matters arising from the applicants' supplementary affidavit within ten (10) days of service thereof.
4. Thereafter either party shall approach the Registrar for a set down date for the determination of the main matter R-HCH 5524/23.
5. The first respondent shall pay the applicant's costs on an attorney-client scale.

MUNANGATI-MANONGWA J:……

Wintertons, first applicant's legal practitioners
Matsika Legal Practice, second applicant's legal practitioners
Gunje Legal Practice, first respondent's legal practitioners